

FIRST ENDORSEMENT

Chief Prosecutor, APU, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr, Department Advocate's Office, May 10, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-28965 against Police Officer Charles Hillery, Tax Registry No. 944653. The case was conferenced on April 30, 2024, before Assistant Deputy Commissioner of Trials Jeff Adler, who approved the dismissal of the charges in return for the recommended penalty of a Command Discipline Schedule (A) and the forfeiture of five (5) vacation days.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor, APU
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-28965
BOOK & PAGE NO. Page 1 of 2
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, HILLERY	FIRST CHARLES	M.I. J	COMMAND 047 PRECINCT
SHIELD NO. 7731	TAX REGISTRY NO. 944653	SOCIAL SECURITY NO.		DATE APPOINTED 07/09/2007

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Charles HILLERY, on or about July 2, 2022, at approximately 2325, while assigned to the 047 PCT and on duty, in the vicinity of East Gun Hill Road and Barnes Avenue, Bronx County, wrongfully used physical force against § 87(2)(b) in that PO HILLERY struck § 87(2)(b) hand with a hand-strike, without police necessity.	DISMISSED	A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Charles HILLERY, on or about July 2, 2022, at approximately 2325, while assigned to the 047 PCT and on duty, in the vicinity of East Gun Hill Road and Barnes Avenue, Bronx County, engaged in conduct prejudicial to good order, efficiency, or discipline of the New York City Police Department, in that PO HILLERY damaged § 87(2)(b) property by striking it to the ground, without sufficient legal authority.	DISMISSED	
3 . Police Officer Charles HILLERY, on or about February 2, 2023, at approximately, while assigned to the 047 PCT, and on duty, in the vicinity of 100 Church Street, 10th Floor, New York	DISMISSED	

DC Butler
FIRST DEPUTY COMMISSIONER

5/29/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Caber
POLICE COMMISSIONER

6/7/24
DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-28965
BOOK & PAGE NO. Page 2 of 2
PERSONNEL ORDER NO.

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SHIELD NO. 7731	TAX REGISTRY NO. 944653	SOCIAL SECURITY NO.	DATE APPOINTED 07/09/2007	

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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
County, provided a inaccurate official statement to the CCRB, in that PO HILLERY responded to the question, "Did you slap § 87(2)(b) phone from his hand?" with, in sum and substance, "I did not slap or punch anything." After PO HILLERY reviewed the recorded evidence showing their hand hitting § 87(2)(b) hand and phone, PO HILLERY stated in sum and substance, "I am unsure whether that constitute contact."		

DC Barbino 5/29/24
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Cab... 6/7/24
POLICE COMMISSIONER DATE

THIRD ENDORSEMENT

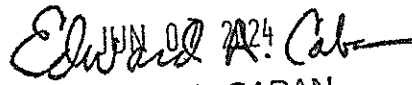
First Deputy Commissioner to Police Commissioner, May 29, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2023-28965 against Police Officer Charles Hillery, Tax No. 944653, with the recommendation that the Charges and Specifications against Police Officer Hillery be dismissed and that Police Officer Hillery receive a Schedule "A" Command Discipline and forfeit five (5) vacation days. Assistant Deputy Commissioner, Trials Jeff S. Adler reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

TIK/pk



Tania I. Kinsella
FIRST DEPUTY COMMISSIONER

APPROVED


JUN 02 2024
EDWARD A. CABAN
POLICE COMMISSIONER